

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DAVID STEWART,

Respondent

) Case Number: FCS-11-346715

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) David Stewart (Father) and Lilia Scott (Mother) have one minor child together, Cybelle (DOB 12/8/2010, age 15). Mother has sole legal and sole physical custody of Cybelle.
- 2) In a Findings and Order After Hearing (FOAH) filed 3/26/2025, the Court noted it had “just recently granted Father unsupervised visitation after essentially a lifetime of estrangement.” The Court ordered unsupervised parenting time for Father twice a month for 2 hours per visit in a public place and ordered Father to bring his son Bruce to the visits until and unless the parties agree otherwise. The Court ordered the parties to meet and confer to schedule the future visits and issued various conduct and communication orders, including an order for Father not to transport Cybelle in a car and for the parties not to use Cybelle as a messenger.
- 3) On 1/27/2026, Father filed a request for joint legal custody and 70/30 physical custody “or some form of equal shared parenting,” “for any weekend or weekday with a ‘Step up’ . . . strategy in place.” Mother opposed the request and requested a Tier II interview of Cybelle, stating the

1 current orders are final, Montenegro orders, Father has not exercised all visits, and there has been
2 no change in circumstances.

3 4) On 4/9/2026, both parties appeared at the hearing on Father's request. Father requested a
4 continuance on the ground that he had just retained counsel, and the matter was continued to
5 5/19/2026.

6 5) At the 5/19/2026 hearing, the Court maintained the current custody and parenting time orders
7 with some modification and ordered a Tier II interview of Cybelle. The Court set the matter for
8 further hearing on 8/13/2026.

9 6) The Court has received and reviewed the Tier II report of Cybelle's interview and has also
10 reviewed and considered the parties' update declarations.

11 **B. Findings and Orders**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child is the United States.

16 2) The Court finds it is in Cybelle's best interest to maintain the current legal and physical custody
17 order without modification. As ordered on 5/19/2026, Father is encouraged, but not required to,
18 bring Bruce to his visits with Cybelle. Although the visits shall not be canceled if Bruce is
19 unavailable to attend the visits, the parties should be mindful that Cybelle has clearly stated that
20 she wishes for Bruce to be present at the visits; thus, the parties shall in good faith ensure that
21 Bruce is able to join Father and Cybelle for the visits. Although the Court understands that Father
22 wishes to have more time with Cybelle, the Court finds that an increase in visits (whether
23 immediately or through a step-up schedule) is not in Cybelle's best interest at this time, given her
24 age and stated wishes and the totality of the circumstances including the history of the case.

25 3) If Cybelle wishes to communicate with either Father or Bruce outside of her visits with Father,
26 she may reach out to either of them via text message, email, or phone or video calls, at her
27 discretion. Mother shall not express disapproval about--or discourage Cybelle from--reaching out
28 to Father or Bruce, and Father shall not place any pressure on Cybelle to communicate with him
29 or Bruce.

1 4) All prior orders, including conduct and communication orders, shall remain in full force and
2 effect.

3 5) The Court will prepare the Findings and Order After Hearing.
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